



SPONSOR: Rep. Griffith & Sen. Poore
Rep. Romer; Sen. Hoffner

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 122

AN ACT TO AMEND TITLE 10 OF THE DELAWARE CODE RELATING TO FAMILY COURT'S CRIMINAL JURISDICTION.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE (Two-thirds of all members elected to each house thereof concurring therein):

Section 1. Amend § 901, Title 10 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 901. Definitions.

For the purpose of this chapter, unless the context indicates differently:

(12) "Family" means spouses; a couple cohabitating in a home in which there is a child of either or both; custodian and child; or any group of persons related by blood or marriage who are residing in 1 home under 1 head or where 1 is related to the other by any of the following degrees of relationship, both parties being residents of this State: relationship:

a. ~~Mother~~; Mother.

b. ~~Father~~; Father.

c. ~~Mother-in-law~~; Mother-in-law.

d. ~~Father-in-law~~; Father-in-law.

e. ~~Brother~~; Brother.

f. ~~Sister~~; Sister.

g. ~~Brother-in-law~~; Brother-in-law.

h. ~~Sister-in-law~~; Sister-in-law.

i. ~~Son~~; Son.

j. ~~Daughter~~; Daughter.

k. ~~Son-in-law~~; Son-in-law.

l. ~~Daughter-in-law~~; Daughter-in-law.

m. ~~Grandfather~~; Grandfather.

n. ~~Grandmother~~; Grandmother.

- o. ~~Grandson~~; Grandson.
- p. ~~Granddaughter~~; Granddaughter.
- q. ~~Stepfather~~; Stepfather.
- r. ~~Stepmother~~; Stepmother.
- s. ~~Stepson~~; Stepson.
- t. Stepdaughter.

The relationships referred to in this definition include blood relationships without regard to legitimacy and relationships by adoption.

Section 2. Amend § 922, Title 10 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 922. Exclusive and concurrent original criminal jurisdiction.

(a) Except as provided in subsections (b), (c), ~~(d) and (e)~~ (d), (e), and (f) of this section, the Court shall have exclusive original criminal jurisdiction in all proceedings in this State concerning the following, the enumeration of which shall not be construed to exclude jurisdiction otherwise conferred upon the Court:

(1) Ill treatment, abuse, abandonment or contributing to the delinquency of a child, or any misdemeanor committed against a ~~child~~; child.

(2) ~~Offenses~~; Any offenses, except felonies, committed:

a. By 1 member against another member of the ~~family~~; family.

b. Between former ~~spouses~~; spouses.

c. ~~Persons~~ Between persons cohabitating together who are holding themselves out as a couple, with or without a child in ~~common~~; or common.

d. ~~Persons~~ Between persons living separate and apart with a child in ~~common~~; common, where parentage of said child is not in dispute.

(3) ~~Offenses~~; Any offenses, except felonies, in which the defendant is a member of a family and the complainant is a peace officer and the criminal act complained of was committed during a family ~~alteration~~; altercation.

(4) Misdemeanor criminal nonsupport and misdemeanor aggravated criminal nonsupport under § 1113 of Title ~~11~~; 11.

(5) Illegitimacy proceedings under 13 Del. C. §§ 1321-1335 of Title 13 ~~[repealed]~~; [repealed].

(6) Children of immoral parents under § 706 of Title 13 ~~[repealed]~~; [repealed].

(7) Aiding a child who escapes from the Department of Services for Children, Youth and Their Families under § 5311 of Title 34; 31.

(8) Cruel treatment and wrongful disposition or employment of children under § 1102 of Title 44; 11.

(9) Interference with custody of a child under § 785 of Title 44; 11.

(10) Placing a resident or bringing a nonresident dependent child into Delaware without consent of the Department of Services for Children, Youth and Their Families under §§ 307, 351 [repealed] of Title 31, except as provided in the Interstate Compact for ~~Juveniles~~; Juveniles.

(11) Sale or delivery of an alcoholic beverage to a child under § 904 of Title 4; 4.

(12) Permitting a child to remain where alcoholic beverages are sold under § 1106 of Title 44; 11.

(13) Permitting a child to be present where gambling activity is maintained or conducted under § 1106 of Title 44; 11.

(14) Sale of weapons to a child under § 903 of Title 24; 24.

(15) Sexual assault on a child under § 761 of Title 44; 11.

(16) Intra-family offenses against the person under §§ 601, 602, 611 of Title 44; 11.

(17) Incest under § 766 of Title 44; 11.

(18) Reciprocal support proceedings against or on behalf of nonresidents under Chapter 6 of Title 13, where ~~appropriate~~; appropriate.

(19) Unlawful sexual contact in the third degree against a child under § 767 of Title 44; 11.

(20) Violation of a protective order under § 1271A of Title 44; 11.

(21) Offenses involving the reporting of new hires under § 1156A of Title 30.

(b) The Court shall have concurrent criminal jurisdiction with the Justice of the Peace Court in all proceedings concerning alleged curfew violations under former §§ 39-14 through 39-16 of the Wilmington Code [see now §§ 36-97 and 36-98 of the Wilmington Code].

(c) The Court shall have concurrent criminal jurisdiction with the Justice of the Peace Courts in all proceedings concerning alleged curfew violations pursuant to any municipal ordinance.

(d) The Court shall have concurrent criminal jurisdiction with the Court of Common Pleas where the offense, except felonies, is committed between persons living separate and apart with a child in common where the parentage of said child is in dispute.

81 ~~(d)~~(e) Notwithstanding the provisions of paragraphs (a)(1)-(a)(3), (a)(17) and (a)(20) of this section, if offenses or
82 criminal cases within the exclusive original jurisdiction of Family Court otherwise may be joined properly with a felony
83 within the jurisdiction of Superior Court, such offenses or criminal cases shall be within the jurisdiction of Superior Court.

84 ~~(e)~~(f) Notwithstanding the provisions of paragraphs (a)(1)-(a)(3), (a)(17) and (a)(20) of this section, if offenses or
85 criminal cases within the exclusive jurisdiction of the Family Court and in which the defendant is an adult otherwise may
86 be joined properly with a criminal case or other offense that is within the jurisdiction of the Court of Common Pleas, the
87 Court of Common Pleas shall have concurrent jurisdiction with Family Court over such offenses or criminal cases shall be
88 within the jurisdiction of the Court of Common Pleas, cases, except that this subsection shall not apply to offenses or
89 criminal cases involving felonies.

SYNOPSIS

This Act clarifies and refines the criminal jurisdiction of Family Court. First, this Act alters the definition of “family” by removing the requirement that both parties be residents of this state. Second, this Act provides concurrent criminal jurisdiction in Family Court and the Court of Common Pleas for certain criminal offenses where the parentage of a child in common is in dispute. Finally, this Act provides Family Court and the Court of Common Pleas with concurrent criminal jurisdiction over non-felony, adult criminal cases that include charges that fall within both Family Court’s and Court of Common Pleas’ jurisdiction.

This Act requires a greater than majority vote for passage because Section 28 of Article IV of the Delaware Constitution requires the affirmative vote of 2/3 of the members elected to each house of the General Assembly to confer jurisdiction of a misdemeanor on the Family Court.

This Act makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.